

[*439] veyancing and Law of Property * Act, 1881, enacts (as to any *sale* made after the 31st December, 1881, and subject to any stipulation to the contrary in the contract of sale) —

(1). That “under a contract to *sell and assign* a term of years derived out of a leasehold interest in land, the intended assign shall not have the right to call for the title to the *leasehold* reversion.”

(2). That “where land of copyhold or customary tenure has been converted into freehold by enfranchisement, then under a contract to sell and convey the freehold, the purchaser shall not have the right to call for the title to make the enfranchisement.”

(3). That a purchaser shall not require the production, or any abstract or copy of any document “dated or made before the time prescribed by law, or stipulated for commencement of the title, even though the same creates a power subsequently exercised” by an abstracted instrument, or “require any information or make any requisition, objection, or inquiry with respect to any such deed, will or document, or the title prior to that time, notwithstanding that any such deed, will or other document, or that prior title is recited, covenanted to be produced or noticed; and he shall assume, unless the contrary appears, that the recitals, contained in the abstracted instruments, of any document forming part of that prior title are correct, and give all the material contents of the document so recited, and that every document so recited was duly executed by all necessary parties, and perfected if and as required by fine, recovery, acknowledgment, enrolment or otherwise.”

(4). That “where land sold is held by lease (not including underlease), the purchaser shall assume, unless the contrary appears, that the lease was duly granted; and on production of the receipt for the last payment due for rent under the lease before the date of actual completion of the purchase, he shall assume, unless the contrary appears, that all the covenants and provisions of the lease have been duly performed and observed up to the date of actual completion.”